

SENATE BILL 1751

By Haile

AN ACT to amend Tennessee Code Annotated, Title 36
and Title 37, relative to adoption.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 36-1-116(a)(1), is amended by deleting the language "provided, that the court may waive this requirement when the child is to be adopted by related persons" and substituting:

provided, that the court may waive this requirement when the child is to be adopted by related persons or the child has already resided in the home of the petitioners for six (6) months

SECTION 2. Tennessee Code Annotated, Section 36-1-116(e)(1), is amended by deleting the language "for prospective adoptive parents who are related to the child" and substituting:

for prospective adoptive parents who are related to the child or in whose home the child has already resided for six (6) months

SECTION 3. Tennessee Code Annotated, Section 36-1-119(a), is amended by deleting the language "Unless the child is related to the petitioners" and substituting the language "Unless the child is related to the petitioners or has already resided in the home of the petitioners for six (6) months".

SECTION 4. Tennessee Code Annotated, Section 36-1-119(c), is amended by adding the following new subdivision:

(3) If the child has already resided in the home of the petitioners for six (6) months, the court has received the final court report concerning the circumstances of the child and the petitioners, and the court is satisfied that the adoption will be in the best

interest of the child, then the court may waive the preliminary home study, home study, and six-month waiting period after the filing of the adoption petition and may enter an order of adoption.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.